

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL APPELLATE JURISDICTION)

First Appeal No. 231 of 2019

With

Civil Rule No. 649(f) of 2018

With

Civil Rule No. 31(vio) of 2020

In the matter of:

Babul Mridha and others.

-Vs-

Eskaton Garden Jame Mosque and another.

Present
Mr. Justice Mamnoon Rahman

And
Mr. Justice Khizir Hayat

Mr. Md. Anisur Rahman (Raihan), Adv.

...For the appellant.

Mr. Md. Iqbal Hossain, Adv.

...For the respondents.

Heard & Judgment on: The 18th March, 2021

Mamnoon Rahman,J:

This appeal as well as rules were heard together and disposed of by a common judgment as they do have similar question of facts and law as well as the parties are same.

This appeal is directed against the judgment and decree dated 12.11.2018 passed by the Joint District Judge, First Court, Dhaka in Title Suit No. 908 of 2018.

The short facts relevant for the disposal of the appeal, are that, the petitioners herein as plaintiffs filed a Title Suit being No. 908 of 2018 in the court of learned Joint District Judge, 1st Court, Dhaka against the Respondent opposite parties herein with a prayer for a decree of

declaration for tenancy right in the suit land describe in the schedule to the plaint.

Subsequently, the trial court fixed date for maintainability hearing and the trial court after hearing the parties and considering the facts and circumstances vide judgment and decree dated 12.11.2018 dismissed the suit in *limine*. Being aggrieved by and dissatisfied with the aforesaid judgment and decree passed by the court below the appellant-plaintiff-petitioners moved before this court by way of appeal.

We have perused the impugned judgment and decree, Memorandum of appeal, application for injunction, grounds taken thereon, rule issuing order dated 26.11.2018, violation rule dated 14.12.202, applications for vacating the order of status-quo, counter-affidavit as well as necessary papers and documents annexed herewith and heard the learned counsels for the contesting parties.

On perusal of the same, it transpires that after filing of the suit the plaintiff-appellant-petitioners obtained an order of status-quo from this court as well as violation rule. However, on perusal of the papers and documents, it transpires that the court below while dismissing the suit held as follows;

নথি পর্যালোচনা করিলাম। নথি পর্যালোচনা করিয়া দেখা যায় যে, বাদী পক্ষ "a) a decree be passed in favour of the plaintiff against the defendants declaring a tenancy right of the plaintiffs in respect of the Suit property." মর্মে প্রার্থনায়

অত্র মোকদ্দমা দায়ের করেন। বাদীর আরজির স্বীকৃত মতে
বাদীগণ বিবাদীর ভাড়াটিয়া। ভাড়াটিয়া কখনই *tenancy right*
মূল মালিকের বিরুদ্ধে অর্জন করিতে পারেনা। বাড়ীওয়ালা
এবং ভাড়াটিয়ার মধ্যে সম্পাদিত চুক্তিপত্র অনুসারে
সম্পর্কও নির্ধারিত হয়। *The Specific Relief Act* এর 42
ধারায় কখনই ভাড়াটিয়া মূল মালিকের বিরুদ্ধে ঘোষণা
মূলক মোকদ্দমা আনয়ন করিতে পারেন না। কারণ
Contractual Relationship এর মাধ্যমে ৪২ ধারায় বর্ণিত
Legal Character অর্জিত হয়না।

It transpires from the prayer itself, is that, the plaintiffs are praying
for tenancy right admitting themselves as a tenant under the defendants.
As such, we are of the view that the court below committed no error or
illegality in passing the judgment and decree which requires no
interference by this court.

Accordingly, the appeal is dismissed and the impugned judgment
and decree passed by the court below is hereby affirmed. Consequently,
both the rules are disposed of.

Send down the lower courts record with a copy of the judgment to
the concerned court below, at once.

(Mamnoon Rahman,J:)

I agree.

(Khizir Hayat,J:)